

**Application to Waive Court
Costs, Fees, and Expenses**

UCS-FW1 (02/2026)

Page 1 of 3

nycourthelp.gov

____ Court

County of _____

In the matter of:

Plaintiff/Petitioner (party bringing case) or **Subject of Proceeding**
-against-**Defendant/Respondent** (opposing party; if none, leave blank)

Index/File Number:

Applicant states the following:

1. I am a party in this case.
2. I am not represented by a lawyer.
3. I live at the following address: _____.
4. I have the following assets (check all that apply):

☐ Income	Source: ☐ Wages ☐ Spousal Support ☐ Social Security/SSI/SSID ☐ Other (specify): _____	Monthly Amount: \$ _____ \$ _____ \$ _____ \$ _____
☐ Bank Account(s)	Type: ☐ Checking Account(s) ☐ Savings Accounts(s)	Current Total Balance: \$ _____ \$ _____
☐ Cash, Bonds, Securities, and Other Investments	Type: ☐ Cash ☐ Bonds ☐ Securities ☐ Other (specify): _____	Current Total Balance: \$ _____ \$ _____ \$ _____ \$ _____
☐ Real Estate	Address(es): _____	Total Estimated Market Value: \$ _____
☐ Vehicles	Type: Make _____ Model _____ Year: _____ Make _____ Model _____ Year: _____ Make _____ Model _____ Year: _____ Make _____ Model _____ Year: _____	Estimated Market Value (minus any unpaid loan amount): \$ _____ \$ _____ \$ _____ \$ _____



5. My estimated current monthly expenses are as follows (check all that apply):

☐ Housing	Type:	Monthly Amount:
	☐ Rent	\$ _____
	☐ Mortgage	\$ _____
	☐ Real property taxes	\$ _____
	☐ Homeowners' insurance	\$ _____
	☐ Homeowners' association/condominium fees, maintenance, and repairs	\$ _____
☐ Utilities	Include internet, phone, water, gas, electric service, and heating	Monthly amount: \$ _____
☐ Other	Type:	Monthly amount:
	☐ Out-of-pocket medical or dental expenses	\$ _____
	☐ Health insurance premiums	\$ _____
	☐ Child support payments	\$ _____
	☐ Transportation (including public transportation fares, insurance, car loan payments, gas)	\$ _____
	☐ Spousal support payments (also known as alimony)	\$ _____
	☐ Education	\$ _____
	☐ Childcare	\$ _____
	☐ Other (specify): _____	\$ _____

6. I am responsible for financially supporting other people (check one): ☐ Yes or ☐ No

If yes, list each dependent's age and provide details about your relationship with each dependent.

NOTE: Do not include dependents' names or dates of birth.

Age	Relationship

7. I have no other income, savings, real property, or assets other than those listed above.

8. I am unable to pay the court costs, fees, and expenses necessary to defend my rights in this case.

9. I cannot afford to hire an attorney to represent me in this case.

10. No one else who is able to pay the required court costs, fees, and expenses has a beneficial interest in the outcome of this case.

11. I intend to assert certain rights and defenses in this case, and I cannot proceed with my case unless this application is granted.

12. I request a court order waiving (check one):

☐ all court costs, fees, and expenses for this case☐ the court filing fee for a Notice of Appeal☐ other (specify): _____

13. I have already filed a Summons and Complaint, or Summons with Notice, or Notice of Petition, or Petition, or Order to Show Cause in this case (check one): ☐ Yes or ☐ No

If yes, you must:

- Serve this Application to Waive Court Costs, Fees, and Expenses (UCS-FW1) together with a Notice of Motion (UCS-FW2) on the:
 - Other parties in the case
 - Corporation Counsel (if filed in NYC)
 - County Attorney (if filed outside of NYC)
- File an Affirmation of Service (UCS-FW3) with the court

14. The facts of my case are (check one):

- ☐ explained in my attached papers (you must attach your complaint, petition, answer, or affidavit of facts).
- ☐ as follows (explain why you have a valid case):

15. Check one of the following:

- ☐ I **have not** previously applied to waive the court costs, fees, and expenses in this case.
- ☐ I **have** previously applied to waive the court costs, fees, and expenses in this case, but I am applying again because: _____

I affirm this ____ day of _____, _____, under the penalties of perjury under the laws of New York, which may include a fine or imprisonment, that the foregoing is true, except as to matters alleged on information and belief and as to those matters I believe it to be true, and I understand that this document may be filed in an action or proceeding in a court of law.

Applicant Signature

Print Name

Note: You may be asked to provide financial documents before the judge makes a decision – for example, bank statements, paystubs, etc. Before filing your application, contact the court and ask if you must submit any financial documents and/or if you are required to serve any other party.